



## 1. OVERVIEW

- 1.1 This Service Pack sets out certain Services to be performed by Deliveroo.
- 1.2 This Service Pack is governed by and entered into pursuant to Deliveroo's Restaurant Terms and Conditions, a copy of which has been provided to the Restaurant (the "**Terms**"). The agreement between the parties comprises this Service Pack and the Terms.
- 1.3 In the event of, and only to the extent of, any inconsistency between this Service Pack and the Terms, the provisions of the Terms shall prevail (except to the extent expressly set out otherwise in this Service Pack).

## 2. SERVICE DESCRIPTION

- 2.1 Deliveroo shall provide to the Restaurant the following services in relation to each of the Sites set out at the start of this Service Pack:
- 2.1.1 launch and display of the Restaurant and Menu Items on the Platform;
- 2.1.2 facilitation of a real-time ordering process which will enable Customers to place Orders via the Platform; and
- 2.1.3 the Customer Support Services.

(the "**Marketplace+ Services**").

## 3. APPOINTMENT AS AGENT

- 3.1 The Restaurant appoints Deliveroo as its agent to solicit Orders in the Territory on the terms of the Agreement and Deliveroo accepts the appointment on those terms. Deliveroo is authorised by the Restaurant to solicit, promote and conclude contracts for Orders in the name of and on behalf of the Restaurant.
- 3.2 The Restaurant appoints Deliveroo as its agent to collect Customer payments owed to the Restaurant. Deliveroo shall be authorised to take such steps as it considers necessary to obtain such funds and shall hold such funds for and on behalf of the Restaurant. The Restaurant acknowledges and represents that where a Customer pays any funds due to the Restaurant to Deliveroo, Deliveroo shall receive such payment on the Restaurant's behalf and that receipt shall constitute settlement of the relevant Customer's debt to the Restaurant.

## 4. EQUIPMENT

- 4.1 The Joining Fee covers the launch by Deliveroo of the Restaurant on the Platform, the licensing of the Software, and (if applicable) and the purchase and installation costs of the Equipment. Deliveroo may set off the payment of the Joining Fee against the Restaurant Payment.
- 4.2 Without prejudice to clause 4.1(d) of the Terms, the Restaurant shall comply with the terms of any Deliveroo equipment policy in relation to the Equipment (if this is to be provided by Deliveroo).
- 4.3 The Restaurant shall purchase all Equipment required for the purpose of receiving the Services directly from Deliveroo unless the Cover Sheet expressly provides that the Restaurant shall use its own Equipment.
- 4.4 Risk in any Equipment supplied by Deliveroo shall pass from Deliveroo to the Restaurant upon installation of the Equipment. Title to any Equipment supplied by Deliveroo shall pass to the Restaurant once Deliveroo has received payment in full of the Joining Fee.
- 4.5 The Restaurant shall promptly inform Deliveroo of any faults with, or damage to, any Equipment supplied by Deliveroo, and shall allow Deliveroo access to the Restaurant at any time during normal business hours to inspect, clean, repair, replace or remove such Equipment. Deliveroo shall be entitled to charge a reasonable fee for repairing or replacing any Equipment supplied by Deliveroo.
- 4.6 Where the Restaurant uses its own Equipment, the Restaurant shall be solely responsible for obtaining the Equipment. If the Restaurant purchases the Equipment from a third party, then except where any defect or damage is caused by Deliveroo, Deliveroo shall have no responsibility for, or liability in relation to, such Equipment and the Restaurant shall be solely responsible for servicing and maintaining such Equipment (and for all associated costs) to ensure that it is fully operational and can accept Orders during the Restaurant's Opening Hours in accordance with the terms of this Agreement.
- 4.7 The Software shall at all times remain the property of Deliveroo or its licensors and the Restaurant has no rights other than the limited right to use it in accordance with the licence set out in this paragraph 4.6. Deliveroo grants to the Restaurant a non-exclusive, non-transferrable, non-sublicensable, revocable licence to use the Software for the Term at the Site(s). The Restaurant shall

- 4.7.1 not (and shall not permit any third party to) copy, adapt, reverse engineer, decompile, modify or make error corrections to the Software other than with Deliveroo's express prior written consent;
- 4.7.2 not (and shall not permit any third party to) breach, disable, tamper with, or develop or use any workaround for any security measure contained within the Software or otherwise do anything that disrupts the operation of the Software or the business of Deliveroo or any other person;
- 4.7.3 be solely responsible for maintaining the security and confidentiality of the Restaurant's access credentials and shall be responsible for all actions taken by any person using such access credentials; and
- 4.7.4 promptly implement any patches, updates, upgrades and/or new versions of the Software that Deliveroo may release from time to time.

- 4.8 The Restaurant acknowledges that Deliveroo may (at its sole discretion) release patches, updates, upgrades and/or new versions of the Software from time to time.

## 5. WHAT WE WILL DO

- 5.1 In addition to Deliveroo's obligations set out at clause 3 of the Terms, Deliveroo shall use reasonable endeavours to:
- 5.1.1 subject to the payment by the Restaurant of the Joining Fee:
- (a) provide the Restaurant with the Equipment where this is agreed in the Cover Sheet above; and
- (b) onboard the Restaurant onto Deliveroo's portal for its restaurant partners. The Restaurant acknowledges and agrees that Deliveroo shall have the right to sub-contract any part of the onboarding process without the Restaurant's consent;
- 5.1.2 display the Restaurant and the Menu Items on the Platform as available for Orders;
- 5.1.3 facilitate and implement a real-time ordering process which will enable Customers to place Orders on the Platform;
- 5.1.4 provide the Customer Support Services through a professionally manned telephone call and online support centre which shall be operative during the Opening Hours. The Customer Support Services shall be provided in an orderly and efficient manner at no further cost to the Restaurant; and
- 5.1.5 at the end of the Term, remove the Restaurant from the Platform.

## 6. WHAT YOU WILL DO

- 6.1 In addition to the Restaurant's obligations set out in clause 4 of the Terms, the Restaurant shall:
- 6.1.1 procure and maintain in force such permits, certificates, registrations, licences and approvals and comply with all laws, regulations and industry best practices as are applicable to the Restaurant in carrying out its obligations in connection with the Marketplace+ Services;
- 6.1.2 pay to Deliveroo: (i) the Joining Fee; and (ii) the Marketplace+ Service Fees;
- 6.1.3 provide to Deliveroo all information, materials and assistance as is reasonably required by Deliveroo in order for Deliveroo to onboard the Restaurant to the Platform, including in relation to Menu Items and Opening Hours;
- 6.1.4 provide Deliveroo with accurate descriptions of Menu Items (including any relevant allergen advice and applicable VAT amounts). Deliveroo and the Restaurant shall jointly determine the Menu Items to be displayed on the Platform. The Restaurant agrees that:
- (a) Deliveroo may edit descriptions of Menu Items as it deems reasonably fit for display on the Platform; and
- (b) the prices for the Menu Items it provides for display on the Platform shall be the same as the prices for menu items published in the Restaurant's in-restaurant customer menu;
- 6.1.5 give Deliveroo not less than 3 days' written notice of any change and/or the discontinuance of any Menu Items and any change to the Opening Hours;
- 6.1.6 ensure that the relevant Menu Items are available to be ordered by a Customer during Opening Hours;

- 6.1.7 accept and reject Orders (as appropriate and in accordance with the Restaurant Service Levels);
- 6.1.8 ensure that Orders are prepared promptly and in accordance with the timescales communicated by the Restaurant to the Customer via the Platform;
- 6.1.9 process and prepare Orders using reasonable skill, care and diligence and in accordance with best practice in the Restaurant's industry;
- 6.1.10 take into account any information relating to Customer allergies submitted along with the Order;
- 6.1.11 ensure all Orders are packaged in such packaging as may be determined by the Restaurant acting reasonably to avoid tampering, to minimise spillage and maintain the Order at an appropriate temperature;
- 6.1.12 ensure that Orders are delivered to Customers by Restaurant Riders at the address specified in the Order in a professional manner;
- 1.1.1 ensure that the Menu Items:
  - (a) correspond with the descriptions on the Platform (including indications that particular Menu Items are gluten free, nut free, or are suitable for vegetarians and/or vegans);
  - (b) are not harmful to health or the environment;
  - (c) have been properly cooked or prepared or are otherwise safe, fit for transportation, consumption or palatable;
  - (d) are safely, securely and otherwise appropriately packaged at all times (including as reasonably required to withstand the delivery process, if applicable to the Services); and
  - (e) are at an appropriate temperature for consumption by the Customer.
- 6.1.13 ensure that each Order number on the Order packaging corresponds with the Order number provided by Deliveroo to the Restaurant;
- 6.1.14 include Deliveroo in any and all promotions, discounts, special offers, etc. that the Restaurant offers in their physical establishment, online, or through other platforms, partners, service providers, suppliers, etc. It is at the discretion of Deliveroo to run any given Restaurant promotion or offer on the Deliveroo platform;
- 6.1.15 not deliver any Orders using a competitor platform of Deliveroo; and
- 6.1.16 provide each Customer with an official receipt (and a VAT receipt, if applicable) in respect of an Order, if the Customer so requests.

## 7. CUSTOMER PAYMENT

- 1.2 The Restaurant may elect to allow Customers the option of paying for Orders in cash ("**Cash Payments**").
- 1.3 If a Customer elects to pay in cash, the Restaurant shall collect Cash Payments from Customers when the Restaurant Rider delivers the Order.
- 1.4 Cash Payments shall be included in the calculation of the GMV for the purposes of determining the Marketplace+ Services Fees.
- 1.5 The Restaurant shall be responsible for the safekeeping of Cash Payments. If the Cash Payment is lost, stolen or is not collected from the Customer, the Restaurant will remain liable to Deliveroo for the Marketplace+ Service Fees of the GMV for such Cash Payments.

## 8. DELIVEROO SERVICE LEVELS

- 8.1 Deliveroo shall use reasonable endeavours to ensure that the Platform shall be available to the Restaurant and Customers no less than 98% of the time (calculated over a period of one calendar month), except for any scheduled downtime which has been notified to the Restaurant by Deliveroo in advance.

## 9. RESTAURANT SERVICE LEVELS

- 9.1 The Restaurant shall use reasonable endeavours to:
  - 9.1.1 reject less than 1% of all Orders received through the Platform (which shall exclude issues caused by errors in the Platform or otherwise caused by Deliveroo); and
  - 9.1.2 ensure that the Menu Items are delivered within 10 minutes of the Target Delivery Time for at least 70% of all deliveries of Orders

## 10. SHARED SERVICE LEVELS

- 10.1 The parties shall use reasonable endeavours to ensure that the Rating remains at no less than 80% during the Term.

## 11. FEES, PRICING AND PAYMENT

- 11.1 In consideration for performing the Marketplace+ Services, Deliveroo shall be entitled to receive the Marketplace+ Services Fees which shall be calculated in accordance with this paragraph 11. The Marketplace+ Services Fees shall be subject to VAT at the prevailing rate. The Restaurant shall cooperate with Deliveroo in order to enable it to comply with its VAT accounting obligations.
  - 11.2 Notwithstanding the Marketplace+ Services Fees, Deliveroo may, in its sole discretion, charge the Customer additional fees.
  - 11.3 The first reference period for the calculation of the Marketplace+ Services Fees (the "**First Period**") will end on the Sunday prior to the next Calculation Day following the Commencement Date (the "**First Calculation Day**"). Marketplace+ Services Fees will subsequently be calculated weekly on the subsequent Calculation Days by reference to consecutive periods of approximately 7 days, ending on the Sunday immediately prior to such Calculation Days (each a "**Period**").
  - 11.4 If the Restaurant disagrees with an account statement, it must notify Deliveroo within 30 days of that statement or invoice otherwise it will be deemed accepted by the Restaurant.
  - 11.5 For the purposes of this clause, a day shall be regarded as beginning at 00:00 UTC time and ending at 23:59 UTC time.
  - 11.6 Within 2 Business Days of the First Calculation Day, or a subsequent Calculation Day (as the case may be), Deliveroo shall:
    - 11.6.1 send or otherwise make available to the Restaurant a statement summarising the Menu Items ordered from the Restaurant during the First Period or during the relevant Period (as appropriate) (the "**Menu Items Amount**");
    - 11.6.2 send or otherwise make available to the Restaurant a statement summarising the corresponding amount due to the Restaurant, which shall be the Menu Items Amount less the Marketplace+ Service Fees (the "**Restaurant Payment**"); and
    - 11.6.3 authorise the transfer of the Restaurant Payment to the Restaurant by electronic bank transfer to a bank account in the Territory nominated by the Restaurant.
  - 11.7 Deliveroo shall be responsible for setting the Minimum Order Value. Where the Minimum Order Value is not met, Deliveroo may charge the Customer an additional fee.
  - 11.8 Notwithstanding the above, Deliveroo may make available, and the Restaurant may elect to apply, alternative options for the Period or the timing of the Restaurant Payment from time to time. In the event of any conflict between the terms of such alternative arrangements and these terms, the terms of such alternative arrangements shall prevail.
- "**Calculation Day**" means the applicable Deliveroo standard day on which Deliveroo calculates payments to restaurants in the Territory .

## 12. LIABILITY

- 12.1 The Restaurant shall be solely responsible and liable for all claims against Deliveroo by Customers relating to, or arising (directly or indirectly) from or in connection with a breach by the Restaurant of paragraphs 6.1.9, 6.1.10 or 6.1.13.
- 12.2 Subject to clauses 9.1 and 9.2 of the Terms, each party's total liability to the other arising under or in connection with the Agreement shall not exceed AED 490,000.
- 12.3 The Restaurant shall indemnify and keep indemnified Deliveroo against all Losses suffered or incurred by Deliveroo in respect of the matters for which the Restaurant is responsible or liable under paragraph 12.1.
- 12.4 If paragraph 12.1 applies in respect of the Restaurant's breach of paragraph 6.1.13, the Customer may be entitled to compensation from Deliveroo. The Customer's eligibility for, and the level of, such compensation shall be

determined by Deliveroo acting reasonably in accordance with the Complaints Matrix.

### 13. TERMINATION

13.1 This Service Pack shall commence on the Commencement Date and will continue until terminated in accordance with clause 11 of the Terms or this paragraph 13 of this Service Pack (the **"Term"**). In addition to the termination rights of the parties set out in clause 11 of the Terms, without affecting any other right or remedy available to it:

1.5.1 either party may terminate the Agreement on giving the other party not less than 30 days' written notice; and

1.5.2 Deliveroo may terminate the Agreement with immediate effect if:

- (a) the Restaurant breaches paragraph 4.6 of this Service Pack;
- (b) the Restaurant breaches paragraph 6.1.1 of this Service Pack; or
- (c) the Restaurant breaches paragraph 6.1.13.

13.2 Either party may terminate the Agreement by giving written notice to the other party if any undisputed sum owing to that party under any of the provisions of the Agreement is not paid within 30 days of the due date for payment.

13.3 Without affecting any other right or remedy available to it, if the Restaurant is in material breach of its obligations under this Service Pack at any time, Deliveroo reserves the right to suspend the provision of the Marketplace+ Services (in whole or in part). Deliveroo shall be entitled to maintain the suspension until the Restaurant is able to remedy the material breach and to demonstrate its future ability to comply with the relevant obligation to Deliveroo's reasonable satisfaction.

13.4 The parties acknowledge and agree that a court order will not be required to give effect to any termination of the Agreement.

### 14. DEFINITIONS

14.1 Unless the context otherwise requires, or otherwise specified, capitalised terms used in the Agreement shall have the meaning given to them in Schedule 1 to these Terms. In addition, the following defined terms shall have the following meanings in this Service Pack:

**"Commencement Date"** has the meaning given to it in the Cover Sheet to this Service Pack.

**"Customer Support Services"** means the support services provided by Deliveroo to the Customer to deal with complaints or enquiries in relation to Orders.

**"Equipment"** means the touch screen terminal and thermal printer, or such other equipment or device, supplied by Deliveroo to the Restaurant or by the Restaurant itself (as specified in the relevant Service Pack), for the purposes of accepting and labelling Orders (excluding the Software).

**"Joining Fee"** means the fee paid by the Restaurant to Deliveroo set out in the Cover Sheet to this Service Pack.

**"Marketplace+ Services Fees"** has the meaning set out in the Cover Sheet to this Service Pack.

**"Opening Hours"** means the times and days during which Restaurant may accept or reject Orders.

**"Minimum Order Value"** means the minimum order value set by the Restaurant as communicated by the Restaurant to Deliveroo from time to time.

**"Restaurant Delivery Fee"** means the delivery fee for the order set by the Restaurant as communicated by the Restaurant to Deliveroo from time to time.

**"Restaurant Rider"** means the delivery riders provided by the Restaurant to deliver Orders to Customers.

**"Target Delivery Time"** means the Order arrival time displayed to the Customer on the Platform.

**"Term"** has the meaning given to it in paragraph 13.1 of this Service Pack.

**"Territory"** has the meaning given to it in the Cover Sheet to this Service Pack.